

STATE OF NEW YORK

1745--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 14, 2025

Introduced by M. of A. ROSENTHAL, OTIS, STIRPE, BENEDETTO, PAULIN, HEVE-SI, CRUZ, REYES, GALLAGHER, KELLES, LUPARDO, ZINERMAN, SEAWRIGHT, DINOWITZ, SAYEGH, BICHOTTE HERMELYN, CLARK, SMITH, FORREST, JACKSON, R. CARROLL, CUNNINGHAM, SHIMSKY, SIMON, MIKULIN, WALSH, SLATER, EACHUS, SHRESTHA, BERGER, STECK -- read once and referred to the Committee on Higher Education -- recommitted to the Committee on Higher Education in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law and the social services law, in relation to the practice of a licensed school psychology practitioner

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Legislative intent and findings. The legislature finds
2 that the ever-growing social and emotional needs of children and youth
3 have only been intensified by the COVID-19 pandemic. The legislature
4 acknowledges that the U.S. Surgeon General has declared a national emer-
5 gency in relation to children's mental health, and that parents and
6 professionals are calling for greater access to mental health services
7 for children. The legislature therefore intends to ensure services are
8 available for children, youth, and their parents to seek the help they
9 need by allowing school psychology professionals to assist these indi-
10 viduals outside of a traditional setting. The legislature finds that
11 increasing the number of trained professionals who are able to provide
12 mental health services outside of an educational setting will be posi-
13 tive for the children, parents, school, and society. School psychology
14 professionals are trained and educated in psychopathology, the psychol-
15 ogy of learning, motivation and human development in order to address
16 the many factors influencing their adjustment in school and life.
17 Accordingly, these factors may include trauma, social and emotional
18 adjustment, inequitable and historically marginalized community condi-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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tions, school climate, and home/school/community collaboration. The legislature therefore declares that by addressing the needs of children through prevention services, assessments and/or counseling, school psychology professionals can contribute to their future success. It is important that school psychology professionals are held to specific standards and requirements that will ensure competent services.

§ 2. The education law is amended by adding a new article 153-A to read as follows:

ARTICLE 153-A

LICENSED SCHOOL PSYCHOLOGY PRACTITIONER

Section 7620. Introduction.

7621. Practice of licensed school psychology practitioner and use of the title "licensed school psychology practitioner".

7622. Definition of the practice of a licensed school psychology practitioner.

7623. Requirements for a professional license.

7624. Boundaries of professional competency.

7625. Limited permits.

7626. Exemptions.

7627. Special provisions.

7628. Mandatory continuing education.

§ 7620. Introduction. This article applies to the profession and practice of a licensed school psychology practitioner and to the use of the title "licensed school psychology practitioner". The general provisions for all professions contained in article one hundred thirty of this title apply to this article.

§ 7621. Practice of licensed school psychology practitioner and use of the title "licensed school psychology practitioner". Only a person licensed or exempt under this article shall practice as a licensed school psychology practitioner or use the title "licensed school psychology practitioner".

§ 7622. Definition of the practice of a licensed school psychology practitioner. The practice of a licensed school psychology practitioner is:

1. the assessment, including psycho-educational, developmental and vocational assessment, evaluation and interpretation of intelligence, cognitive processes, aptitudes, interests, academic achievement, adjustment, personality factors and motivations, or any other attributes, to individuals or groups of preschool and school-age children and adolescents that relate to learning, education or adjustment needs;

2. the development and implementation of educationally-related psychotherapeutic and behavioral approaches to increase school adjustment and academic success, counseling and interpretive services to reduce education-related problems including, but not limited to, verbal interaction, interviewing, behavior techniques, developmental and vocational intervention, environmental management and group processes;

3. consultation with representatives of schools, agencies and organizations, families or individuals, including psycho-educational, developmental and vocational assistance or direct educational services, related to learning problems and adjustments to those problems to the benefit of an individual or group of preschool and school-age children and adolescents; and

4. the development of programming, including designing, implementing or evaluating educationally and psychologically sound learning environ-

1 ments and the facilitation of psycho-educational development of individ-
2 uals, families or groups.

3 § 7623. Requirements for a professional license. To qualify for a
4 license as a licensed school psychology practitioner, an applicant shall
5 fulfill the following requirements:

6 1. Application: File an application with the department;

7 2. Education: Complete a minimum of sixty graduate semester hours in
8 psychology credits including a master's degree and fulfill the require-
9 ments of an advanced degree in school psychology or its equivalent or
10 doctoral degree in school psychology from a program registered by the
11 department, or determined by the department to be the substantial equiv-
12 alent in accordance with the commissioner's regulations. The graduate
13 coursework shall reflect the training and credentialing standards estab-
14 lished by a national certifying body having school psychology certif-
15 ication or regional standards acceptable to the commissioner and
16 include, but not be limited to, the following areas:

17 (i) biological, social and cultural bases of development;

18 (ii) psychopathology and exceptionality in learning and behavior;

19 (iii) assessment and appraisal of learners in home and school
20 contexts;

21 (iv) consultation and collaboration in family, school and community
22 systems;

23 (v) effective instruction and development of cognitive and academic
24 skills;

25 (vi) prevention and treatment of behavioral and emotional disorders
26 and deficits;

27 (vii) school organization, curriculum, policy and law;

28 (viii) research and program evaluation;

29 (ix) professional and ethical practice of psychology in schools; and

30 (x) completion of a twelve hundred hour supervised internship in
31 school psychology, with no less than six hundred hours completed within
32 a school setting or such other setting otherwise governed by the
33 provisions of section sixty-five hundred three-a or sixty-five hundred
34 three-b of this title relating to waivers for entities providing profes-
35 sional services.

36 3. Experience: Complete a minimum of three thousand hours of post-
37 master's supervised experience relevant to the practice of school
38 psychology satisfactory to the board and in accordance with the commis-
39 sioner's regulations, such supervised experience which may include one
40 thousand two hundred hours completed as part of a program in school
41 psychology. Satisfactory experience obtained in an entity operating
42 under a waiver issued by the department pursuant to section sixty-five
43 hundred three-a of this title may be accepted by the department,
44 notwithstanding that such experience may have been obtained prior to the
45 effective date of such section sixty-five hundred three-a and/or prior
46 to the entity having obtained a waiver. The department may, for good
47 cause shown, accept satisfactory experience that was obtained in a
48 setting that would have been eligible for a waiver but which has not
49 obtained a waiver from the department or experience that was obtained in
50 good faith by the applicant under the belief that appropriate authori-
51 zation had been obtained for the experience, provided that such experi-
52 ence meets all other requirements for acceptable experience;

53 4. Examination: Pass an examination satisfactory to the board and in
54 accordance with the commissioner's regulations;

55 5. Age: Be at least twenty-one years of age;

1 6. Character: Be of good moral character as determined by the depart-
2 ment; and

3 7. Fees: Pay a fee of two hundred dollars to the department for an
4 initial license and a fee of one hundred seventy dollars for each trien-
5 nial registration period.

6 § 7624. Boundaries of professional competency. 1. It shall be deemed
7 practicing outside the boundaries of a person's professional competence
8 for a person licensed pursuant to this article, in the case of treatment
9 of any serious mental illness, to provide any mental health services
10 for such illness on a continuous and sustained basis without a medical
11 evaluation of the illness by, and consultation with, a physician regard-
12 ing such illness. Such medical evaluation and consultation shall be to
13 determine and advise whether any medical care is indicated for such
14 illness. For purposes of this section, "serious mental illness" means
15 schizophrenia, schizoaffective disorder, bipolar disorder, major
16 depressive disorder, panic disorder and obsessive-compulsive disorder.
17 Nothing in this section shall be construed to prevent, limit or impair
18 consultation with any other health or mental health professional.

19 2. Any individual whose license or authority to practice derives from
20 the provisions of this article shall be prohibited from:

21 (a) prescribing or administering drugs as defined in this chapter as a
22 treatment, therapy, or professional service in the practice of such
23 individual's profession;

24 (b) using invasive procedures as a treatment, therapy, or professional
25 service in the practice of such individual's profession. For purposes of
26 this subdivision, "invasive procedure" means any procedure in which
27 human tissue is cut, altered, or otherwise infiltrated by mechanical or
28 other means. Invasive procedure includes surgery, lasers, ionizing
29 radiation, therapeutic ultrasound, or electroconvulsive therapy; or

30 (c) engaging in dual setting practice, or otherwise offering or
31 providing private practice services to a student of a school or special
32 education program where the practitioner is currently employed or under
33 contract with such school or program.

34 3. Nothing in this article shall be deemed to authorize, grant or
35 extend hospital privileges to individuals licensed under this article.

36 § 7625. Limited permits. 1. The department may issue a limited permit
37 to an applicant who meets all qualifications for licensure, except the
38 examination and/or experience requirements, in accordance with regu-
39 lations promulgated therefor.

40 2. Limited permits shall be for one year; such limited permits may be
41 renewed, at the discretion of the department, for one additional year.

42 3. The fee for each limited permit and for each renewal shall be
43 seventy dollars.

44 4. A limited permit holder shall practice only under supervision as
45 determined in accordance with the commissioner's regulations.

46 § 7626. Exemptions. Nothing contained in this article shall be
47 construed to:

48 1. apply to the practice, conduct, activities, services or use of any
49 title by any person licensed or otherwise authorized to practice medi-
50 cine within the state pursuant to article one hundred thirty-one of this
51 title or by any person registered to perform services as a physician
52 assistant within the state pursuant to article one hundred thirty-one-B
53 of this title or by any person licensed or otherwise authorized to prac-
54 tice psychology within this state pursuant to article one hundred
55 fifty-three of this title or by any person licensed or otherwise author-
56 ized to practice as a licensed clinical social worker within this state

1 pursuant to article one hundred fifty-four of this title, or by any
2 person licensed or otherwise authorized to practice nursing as a regis-
3 tered professional nurse within this state pursuant to article one
4 hundred thirty-nine of this title, or by any person licensed or other-
5 wise authorized to practice mental health counseling, marriage and fami-
6 ly therapy, creative arts therapy, or psychoanalysis within the state,
7 or by any person licensed or otherwise authorized to practice applied
8 behavior analysis within the state pursuant to this article; provided,
9 however, that no physician, physician's assistant, registered profes-
10 sional nurse, psychologist, licensed clinical social worker, licensed
11 mental health counselor, licensed marriage and family therapist,
12 licensed creative arts therapist, licensed psychoanalyst or licensed
13 applied behavior analyst may use the title unless licensed under this
14 article;

15 2. prohibit or limit any individual who is credentialed under any law,
16 including attorneys, rape crisis counselors, certified alcoholism coun-
17 selors and certified substance abuse counselors from providing mental
18 health services within their respective established authorities;

19 3. prohibit or limit the practice of a profession licensed pursuant
20 to this article by a student, intern or resident in, and as a part of, a
21 supervised educational program in an institution approved by the depart-
22 ment;

23 4. prohibit or limit the provision of pastoral counseling services by
24 any member of the clergy or Christian Science practitioner, within the
25 context of such member of the clergy or Christian Science practitioner's
26 ministerial charge or obligation;

27 5. prohibit or limit individuals, churches, schools, teachers, organ-
28 izations, or not-for-profit businesses, from providing instruction,
29 advice, support, encouragement, or information to individuals, families,
30 and relational groups;

31 6. prohibit or limit an occupational therapist from performing work
32 consistent with article one hundred fifty-six of this title;

33 7. affect or prevent the activities or services on the part of a
34 person in the employ of a federal, state, county, or municipal agency,
35 other political subdivision, or a chartered elementary or secondary
36 school or degree-granting educational institution insofar as such activ-
37 ities and services are a part of the duties of such person's salaried
38 position; or

39 8. impair or affect the conduct, activities or services of a techni-
40 cian to administer and score standardized objective (non-projective)
41 psychological or neuropsychological tests which have specific predeter-
42 mined and manualized administrative procedures which entail observing
43 and describing test behavior and test responses, and which do not
44 require evaluation, interpretation or other judgments as provided in
45 subdivision eleven of section seventy-six hundred five of this title.

46 § 7627. Special provisions. 1. Any nonexempt person practicing the
47 profession of licensed school psychology practitioner shall apply for a
48 license of such profession within one year of the effective date of this
49 section.

50 (a) If such person does not meet the requirements for a license estab-
51 lished within this article, such person may meet alternative criteria
52 determined by the department to be the substantial equivalent of such
53 criteria.

54 (b) If such person meets the requirements for a license established
55 within this article, except for examination, and has been certified or
56 registered by a national certifying or registering body having certif-

1 ication or registration standards acceptable to the commissioner, the
2 department shall license without examination.

3 2. Notwithstanding the requirements of section seventy-six hundred
4 twenty-three of this article, and for a period of time not to exceed two
5 years from the effective date of this article, an individual may be
6 licensed as a school psychology practitioner provided such person has
7 either:

8 (a) met the educational requirements as defined in section seventy-six
9 hundred twenty-three of this article and performed the duties of a
10 school psychologist as authorized by article one hundred fifty-three of
11 this title or any other provision of law, for two of the past five years
12 prior to the effective date of this article; or

13 (b) performed the duties of a school psychologist as authorized by
14 article one hundred fifty-three of this title or any other provision of
15 law, for at least five years prior to the effective date of this arti-
16 cle.

17 3. Any person licensed pursuant to this article may use accepted codes
18 and classifications of signs, symptoms, dysfunctions and disorders, as
19 approved in accordance with regulations promulgated by the department,
20 in the practice of such licensed profession.

21 4. Nothing in this article shall be deemed to alter, modify or affect
22 the provisions of section three thousand twelve or twenty-five hundred
23 ten of this chapter or otherwise affect the certification of a school
24 psychologist.

25 § 7628. Mandatory continuing education. 1. (a) Each licensed school
26 psychology practitioner required under this article to register trienni-
27 ally with the department to practice in this state, shall comply with
28 the provisions of mandatory continuing education requirements prescribed
29 in subdivision two of this section, except as set forth in paragraphs
30 (b) and (c) of this subdivision. Licensed school psychology practition-
31 ers who do not satisfy the mandatory continuing education requirements
32 shall not practice until they have met such requirements, and they have
33 been issued a registration certificate, except that a licensed school
34 psychology practitioner may practice without having met such require-
35 ments if they are issued a conditional registration certificate pursuant
36 to subdivision three of this section.

37 (b) Each licensed school psychology practitioner shall be exempt from
38 the mandatory continuing education requirements for the triennial regis-
39 tration period during which they are first licensed. In accordance with
40 the intent of this section, adjustment to the mandatory continuing
41 education requirement may be granted by the department for reasons of
42 health that are certified by an appropriate health care professional,
43 for extended active duty with the armed forces of the United States, or
44 for other good cause acceptable to the department which may prevent
45 compliance.

46 (c) A licensed school psychology practitioner shall be exempt from the
47 mandatory continuing education requirement upon the filing of a state-
48 ment with the department declaring such status. Any licensee who returns
49 to the practice of licensed school psychology during the triennial
50 registration period shall notify the department prior to reentering the
51 profession and shall meet such mandatory education requirements as shall
52 be prescribed by regulations of the commissioner.

53 2. During each triennial registration period an applicant for regis-
54 tration as a licensed school psychology practitioner shall complete a
55 minimum of thirty-six hours of acceptable formal continuing education, a
56 maximum of twelve hours of which may be self-instructional course work

1 acceptable to the department. A licensed school psychology practitioner
2 whose first registration date following the effective date of this
3 section occurs less than three years from such effective date, but on or
4 after January first, two thousand thirty up to the first registration
5 date thereafter. A licensee who has not satisfied the mandatory continu-
6 ing education requirement shall not be issued a triennial registration
7 certificate by the department and shall not practice unless and until a
8 conditional registration certificate is issued as provided for in subdivi-
9 sion three of this section. Continuing education hours taken during
10 one triennium may not be transferred to the subsequent triennium.

11 3. (a) The department, in its discretion, may issue a conditional
12 registration to a licensee who fails to meet the continuing education
13 requirements established in subdivision two of this section but who
14 agrees to make up any deficiencies and complete any additional education
15 which the department may require. The fee for such a conditional regis-
16 tration shall be the same as, and in addition to, the fee for the trien-
17 niel registration. The duration of such conditional registration shall
18 be determined by the department but shall not exceed one year. Any
19 licensee who is notified of the denial of registration for failure to
20 submit evidence, satisfactory to the department, of required continuing
21 education and who practices without such registration may be subject to
22 disciplinary proceedings pursuant to this title.

23 (b) For purposes of this section "acceptable formal education" shall
24 mean formal courses of learning which contribute to professional prac-
25 tice in school psychology and which meet the standards prescribed by
26 regulations of the commissioner. Such formal courses of learning shall
27 include, but not be limited to, collegiate level credit and non-credit
28 courses, professional development programs and technical sessions
29 offered by national, state and local professional associations and other
30 organizations acceptable to the department, and any other organized
31 educational and technical programs acceptable to the department. Contin-
32 uing education courses must be taken from a provider who has been
33 approved by the department, based upon an application and fee, pursuant
34 to the regulations of the commissioner. The department may, in its
35 discretion and as needed to contribute to the health and welfare of the
36 public, require the completion of continuing education courses in
37 specific subjects to fulfill this mandatory continuing education
38 requirement. Licensed school psychology practitioners shall maintain
39 adequate documentation of completion of acceptable formal continuing
40 education and shall provide such documentation at the request of the
41 department. Failure to provide such documentation upon the request of
42 the department shall be an act of misconduct subject to disciplinary
43 proceedings pursuant to this title.

44 (c) The mandatory continuing education fee shall be determined by the
45 department. Such fee shall be payable on or before the first day of each
46 triennial registration period, and shall be paid in addition to the
47 triennial registration fees as required by law.

48 § 3. Paragraph a of subdivision 3 of section 6507 of the education
49 law, as amended by chapter 733 of the laws of 2023, is amended to read
50 as follows:

51 a. Establish standards for preprofessional and professional education,
52 experience and licensing examinations as required to implement the arti-
53 cle for each profession. Notwithstanding any other provision of law, the
54 commissioner shall establish standards requiring that all persons apply-
55 ing, on or after January first, nineteen hundred ninety-one, initially,
56 or for the renewal of, a license, registration or limited permit to be a

1 physician, chiropractor, dentist, registered nurse, podiatrist, optome-
2 trist, psychiatrist, psychologist, licensed school psychology practi-
3 tioner, licensed master social worker, licensed clinical social worker,
4 licensed creative arts therapist, licensed marriage and family thera-
5 pist, licensed mental health counselor, licensed psychoanalyst, dental
6 hygienist, licensed behavior analyst, certified behavior analyst assist-
7 ant, or athletic trainer shall, in addition to all the other licensure,
8 certification or permit requirements, have completed two hours of
9 coursework or training regarding the identification and reporting of
10 child abuse and maltreatment. The coursework or training shall be
11 obtained from an institution or provider which has been approved by the
12 department to provide such coursework or training. The coursework or
13 training shall include information regarding the physical and behavioral
14 indicators of child abuse and maltreatment and the statutory reporting
15 requirements set out in sections four hundred thirteen through four
16 hundred twenty of the social services law, including but not limited to,
17 when and how a report must be made, what other actions the reporter is
18 mandated or authorized to take, the legal protections afforded repor-
19 ters, and the consequences for failing to report. Such coursework or
20 training may also include information regarding the physical and behav-
21 ioral indicators of the abuse of individuals with developmental disabil-
22 ities and voluntary reporting of abused or neglected adults to the
23 office for people with developmental disabilities or the local adult
24 protective services unit. Each applicant shall provide the department
25 with documentation showing that ~~[he or she]~~ such applicant has completed
26 the required training. The department shall provide an exemption from
27 the child abuse and maltreatment training requirements to any applicant
28 who requests such an exemption and who shows, to the department's satis-
29 faction, that there would be no need because of the nature of ~~[his or~~
30 ~~her]~~ such applicant's practice for ~~[him or her]~~ such applicant to
31 complete such training;

32 § 4. Section 7602 of the education law, as added by chapter 987 of the
33 laws of 1971, is amended to read as follows:

34 § 7602. State board for psychology. A state board for psychology
35 shall be appointed by the board of regents on recommendation of the
36 commissioner for the purpose of assisting the board of regents and the
37 department on matters of professional licensing and professional conduct
38 in accordance with section sixty-five hundred eight of this title. The
39 board shall be composed of not less than eleven ~~[psychologists licensed~~
40 ~~in this state]~~ members, seven of whom shall be licensed psychologists,
41 two of whom shall be licensed school psychology practitioners and two of
42 whom shall be public members. An executive secretary to the board shall
43 be appointed by the board of regents upon the recommendation of the
44 commissioner and shall be a psychologist, licensed in this state.

45 § 5. Paragraph (a) of subdivision 1 of section 413 of the social
46 services law, as amended by chapter 733 of the laws of 2023, is amended
47 to read as follows:

48 (a) The following persons and officials are required to report or
49 cause a report to be made in accordance with this title when they have
50 reasonable cause to suspect that a child coming before them in their
51 professional or official capacity is an abused or maltreated child, or
52 when they have reasonable cause to suspect that a child is an abused or
53 maltreated child where the parent, guardian, custodian or other person
54 legally responsible for such child comes before them in their profes-
55 sional or official capacity and states from personal knowledge facts,
56 conditions or circumstances which, if correct, would render the child an

1 abused or maltreated child: any physician; registered physician assist-
2 ant; surgeon; medical examiner; coroner; dentist; dental hygienist;
3 osteopath; optometrist; chiropractor; podiatrist; resident; intern;
4 athletic trainer; psychologist; licensed school psychology practitioner;
5 registered nurse; social worker; emergency medical technician; licensed
6 creative arts therapist; licensed marriage and family therapist;
7 licensed mental health counselor; licensed psychoanalyst; licensed
8 behavior analyst; certified behavior analyst assistant; hospital person-
9 nel engaged in the admission, examination, care or treatment of persons;
10 a Christian Science practitioner; school official, which includes but is
11 not limited to school teacher, school guidance counselor, school
12 psychologist, school social worker, school nurse, school administrator
13 or other school personnel required to hold a teaching or administrative
14 license or certificate; full or part-time compensated school employee
15 required to hold a temporary coaching license or professional coaching
16 certificate; social services worker; employee of a publicly-funded emer-
17 gency shelter for families with children; director of a children's over-
18 night camp, summer day camp or traveling summer day camp, as such camps
19 are defined in section thirteen hundred ninety-two of the public health
20 law; day care center worker; school-age child care worker; provider of
21 family or group family day care; employee or volunteer in a residential
22 care facility for children that is licensed, certified or operated by
23 the office of children and family services; or any other child care or
24 foster care worker; mental health professional; substance abuse counse-
25 lor; alcoholism counselor; all persons credentialed by the office of
26 ~~[alcoholism and substance abuse]~~ addiction services and supports;
27 employees, who are expected to have regular and substantial contact with
28 children, of a health home or health home care management agency
29 contracting with a health home as designated by the department of health
30 and authorized under section three hundred sixty-five-1 of this chapter
31 or such employees who provide home and community based services under a
32 demonstration program pursuant to section eleven hundred fifteen of the
33 federal social security act who are expected to have regular and
34 substantial contact with children; peace officer; police officer;
35 district attorney or assistant district attorney; investigator employed
36 in the office of a district attorney; or other law enforcement official.

37 § 6. Subparagraph (i) of paragraph a of subdivision 1 of section
38 6503-a of the education law, as amended by chapter 554 of the laws of
39 2013, is amended to read as follows:

40 (i) services provided under article one hundred fifty-three-A, one
41 hundred fifty-four, one hundred sixty-three or one hundred sixty-seven
42 of this title for which licensure would be required, or

43 § 7. Severability. If any clause, sentence, paragraph, section or part
44 of this act shall be adjudged by any court of competent jurisdiction to
45 be invalid, the judgment shall not affect, impair, or invalidate the
46 remainder thereof, but shall be confined in its operation to the clause,
47 sentence, paragraph, section or part thereof directly involved in the
48 controversy in which the judgment shall have been rendered.

49 § 8. This act shall take effect eighteen months after it shall have
50 become a law. Effective immediately the department of education is
51 authorized to promulgate any and all rules and regulations and take any
52 other measure necessary to implement this act on or before its effective
53 date, including, but not limited to, the appointment of the state board
54 for psychology, the acceptance and processing of applications for licen-
55 sure and the issuance of licenses.